

24SMCV00010 24SMCV00010

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Case Number: 24SMCV00010 Hearing Date: August 18, 2026 Dept: M

CASE NAME: Glowa, v. MDR

L&M Apartments LLC, et al.

CASE NO.: 24SMCV00010

MOTION: Motion

to Intervene

HEARING DATE: 8/18/2026

Legal

Standard

Pursuant to Code of Civil Procedure

section 387, a nonparty ("intervenor") may become a party to an action or proceeding between other persons by joining a plaintiff in claiming what is sought by the complaint, uniting with a defendant in resisting the claims of a plaintiff, or demanding anything adverse to both a plaintiff and a defendant.

(CCP §387(b).) "The purpose of allowing

intervention is to promote fairness by involving all parties potentially affected by a judgment." (Lindelli v. Town of San Anselmo (2006) 139 Cal.App.4th 1499, 1504.)

CCP section 387 allows intervention

on either a mandatory or permissive basis. "A nonparty has a right... to intervene in a pending action 'if the person seeking intervention claims an interest relating to the property or transaction which is the subject of the action and that person is so situated that the disposition of the action may as

a practical matter impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by existing parties.' " (Hodge v. Kirkpatrick Development, Inc. (2005) 130 Cal.App.4th 540, 547.)

The Court may permit intervention "(1) where the proposed intervenor has a direct interest, (2) intervention will not enlarge the issues in the litigation, and (3) the reasons for the intervention outweigh any opposition by the present parties.' " (Lindelli v. Town of San Anselmo (2006) 139 Cal.App.4th 1499, 1504.)

The Court must determine, as a question of fact, whether the petitioner has a direct interest in the matter. (Muller v. Robinson (1959) 174 Cal.App.2d 511, 515.) The burden rests on the one seeking to intervene to show that this is a proper case for intervention. (Id.) "For an interest to be direct and immediate, the interest "must be of such a direct and immediate nature that the moving party will either gain or lose by the direct legal operation and effect of the judgment. A person has a direct interest justifying intervention in litigation where the judgment in the action of itself adds to or detracts from his legal rights without reference to right and duties not involved in the litigation. Conversely, [a]n interest is consequential and thus insufficient for intervention when the action in which intervention is sought does not directly affect it although the results of the action may indirectly benefit or harm its owner." (City and County of San Francisco v. State of California (2005) 128 Cal.App.4th 1030, 1037, quotations and citations omitted.)

The application must also be "timely." (CCP §387.) Whether the motion is timely depends on the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented. (Ziani Homeowners Association v. Brookfield Ziani LLC (2015) 243 Cal.App.4th 274, 282.)

A nonparty's petition for intervention must include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests. (CCP §387(c).)

If the court grants leave to intervene, the intervenor must separately file the complaint in intervention,

answer in intervention, or both, and serve notice of the court's order granting leave to intervene and the pleadings on all parties. (CCP §387(e).)

ANALYSIS

Proposed Intervenor Chubb Insurance

seeks leave to file a Complaint-in-Intervention in this action.

There is no dispute that Intervenor claims an interest relating to the transaction that is the subject of the action and that Intervenor is so situated that the disposition of the action may impair or impede Intervenor's ability to protect that interest. Intervenor issued a commercial general liability insurance policy which is providing a defense to Defendant Common Management Co. for the period of March 1, 2021, through March 1, 2022, as additional insured. Intervenor has provided a defense for Common in this action and may become liable under its insurance policy for any judgment rendered against Common. There is also no dispute that Intervenor's interest is not being adequately represented by its insured, Common. Counsel has claimed that they are not in contact with anyone at Common, Common is in bankruptcy, and Common no longer has any agents, officers, or employees who may guide this litigation. Intervenor attaches a copy of the proposed pleading. (Ullrich Decl., Ex. B.) Common has thus effectively refused to participate in this action, including by failing to verify discovery responses. Intervenor thus has a right to intervene under these circumstances. (Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc. (2006) 136 Cal.App.4th 212, 223; Jade K. v. Viguri (1989) 210 Cal.App.3d 1459, 1468-1469.) Furthermore, the Court would find grounds for permissive intervention under these facts, since the intervention will not significantly expand the issues presented in this action.

The only dispute is whether Intervenor timely moved to intervene. "Timeliness is determined by the totality of the circumstances facing would-be intervenors, with a focus on three primary factors: (1) the stage of the proceeding at which an applicant seeks to intervene; (2) the prejudice to other parties; and (3) the reason for the delay. [D]elay in itself does not make a request for intervention untimely. When mandatory intervention is sought, because the would-be intervenor may be seriously harmed if intervention is denied, courts should be reluctant to dismiss such a request for intervention as untimely, even though they might deny the request if the intervention were merely

permissive. [¶] Although totality of circumstances should be considered, prejudice to existing parties is most important consideration in deciding whether motion for intervention is timely; this does not, however, include prejudice that would result from allowing intervention, rather, only prejudice caused by movant's delay should be considered." (Crestwood Behavioral Health, Inc. v. Lacy (2021) 70 Cal.App.5th 560, 574, citations and quotations omitted.)

Arguably, Intervenor's motion is untimely. Plaintiff presents evidence that at the outset of the case, Intervenor knew that intervention might be necessary. For instance, on June 23, 2024, counsel for Defendants advised that he has not yet had any contact with his clients and his insurance carrier intends to intervene in this matter. (Rosensweig Decl. ¶ 2.) Notably, this matter was stayed from August 20, 2024, through August 22, 2025, due to the bankruptcy proceedings of Common. On August 22, 2025, insurance-appointed defense counsel again advised that they still had no contact with any one from the entity defendants, and that they "may need to have our carrier intervene." (Id., ¶ 3, Ex. A.) On September 4, 2025, defense counsel filed a notice of removal of this lawsuit to federal court, which was remanded shortly thereafter. On January 23, 2026, Common provided unverified discovery responses noting that Defendant is undergoing bankruptcy and presently has no employees. (Id., ¶ 4.) It was not until May 28, 2026, that counsel raised an offer to stipulate to have the carrier intervene. (Id., ¶ 5.) Defense counsel apparently only obtained approval from the Intervenor to begin the process on June 20, 2026. (Ullrich Decl., ¶ 9, Ex. 4.) Intervenor does not address this element in its initial motion.

In reply, Intervenor only cites its offer to stipulate to intervention as the relevant date. However, this date is not when Intervenor knew that its interests in the litigation were not being adequately represented. It certainly knew of this risk well before that point, most likely as early as June 2024 when it first recognized the risk to its interest and the need for intervention based upon Common's bankruptcy, and as late as January 2026, when the risk materialized as Common could not serve discovery responses. Intervenor's delay meant that this motion would not be heard until six weeks prior to trial.

The issue is whether there is substantial prejudice to Plaintiff caused by the delay. At worst, the intervention might be grounds for delay of trial and additional discovery concerning coverage. In her

opposition, Plaintiff does not demonstrate that her action will be seriously prejudiced by the loss of evidence, but the Court will consider argument from the parties as to this issue.